

STATE OF NEW YORK

8590--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 21, 2025

Introduced by M. of A. BRONSON, LASHER, JACOBSON -- read once and referred to the Committee on Labor -- reported and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the labor law, in relation to disputes between employers and recognized employee organizations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 715 of the labor law, as amended by chapter 890 of
2 the laws of 1968, is amended to read as follows:

3 § 715. Application of article. 1. The provisions of this article shall
4 not apply to: ~~[(1)]~~ (a) employees of any employer who concedes to and
5 agrees with the board that such employees are subject to and protected
6 by the provisions of the ~~[national labor relations act or the]~~ federal
7 railway labor act; ~~[or (2)]~~ (b) employees where the national labor
8 relations board successfully asserts jurisdiction over any employer,
9 employees, trades, or industries pursuant to an order by the federal
10 district court established under article three of the United States
11 constitution; or (c) employees of the state or of any political or civil
12 subdivision or other agency thereof.

13 2. For all other employees, the board shall, upon application and
14 verification, promptly certify the exclusive bargaining representative
15 of any bargaining unit previously certified by another state or federal
16 agency. All existing terms and conditions of employment between a certi-
17 fied exclusive bargaining representative and an employer shall remain in
18 full force and effect through the board's verification process.

19 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

LBD13123-02-5